

***HEARING ON MOTION IN RE: QUASH SUBPOENAS ISSUED ON 8/15/25 & 8/18/25**

FILED BY: BATEMAN, KRISTOPHER

TENTATIVE RULING:

See LINE 11 above.

13. 9:00 AM CASE NUMBER: C25-01189

CASE NAME: OLIVIA ALVAREZ VS. CITY OF BRENTWOOD

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: CITY OF BRENTWOOD

TENTATIVE RULING:

Before the Court is Defendant City of Brentwood (“Defendants” or “Brentwood”)’s demurrer. The demurrer relates to Plaintiff Olivia Alvarez (“Plaintiff” or “Alvarez”)’s First Amended Complaint for (1) Race Discrimination (Disparate Impact), (2) Race Discrimination (Disparate Treatment), (3) Age Discrimination (Disparate Impact), (4) Age Discrimination (Disparate Treatment), (5) Hostile Work Environment Harassment, (6) Retaliation, (7) Retaliation for Exercising Rights Under CFRA, and (8) Failure to Prevent Discrimination, Harassment, and Retaliation.

Defendant demurs to Plaintiff’s First Amended Complaint pursuant to California Code of Civil Procedure § 430.10 on the grounds that Plaintiff’s complaint relies on factual allegations that are barred by the statute of limitations, and that Plaintiff’s First, Third, Fourth, Fifth, Sixth, and Eighth claims fail to state sufficient facts to constitute causes of action.

Plaintiff opposes Defendant’s demurrer on the grounds that it improperly attempts to resolve factual disputes, draw inferences against Plaintiff, and imposes evidentiary burdens wholly inappropriate at the pleading stage.

For the following reasons, Defendants’ demurrer to Plaintiff’s First Amended Complaint is **sustained with leave to amend in part and overruled in part**.

Any amended complaint shall be filed and served on or before February 20, 2026.

Factual Allegations and Background

This suit arises out of an employment dispute.

Olivia Alvarez is a woman of Hispanic/Latin American descent. (First Amended Complaint (“FAC”) at 3:5-6.) She was employed by the City of Brentwood as a Parks and Recreation Department Supervisor from December of 2000 until April 28, 2023, when she was terminated. (*Id.* at 3:4-6, 19:25.) Alvarez was 50 years old at the time of her termination. (*Id.* at 25:15-16.) Between 2000 and 2019 Brentwood consistently gave Alvarez positive annual performance evaluations that complimented her on her ability to work with others and her professionalism. (*Id.* at 4:22-28.)

In 2018 Kris Farro ("Farro"), a white woman, became Alvarez's manager. (FAC at 5:3-4.) Alvarez's former fiancé, Jose Juan Rodriguez ("Rodriguez"), a Latin American man, became a Brentwood City Councilmember in January 2019. (*Id.* at 5:7-10.) Shortly thereafter, Farro sought a meeting with Rodriguez and told Alvarez that Farro "would be 'leaning on' Alvarez to 'communicate/persuade/influence Council Member Rodriguez on items or decisions that may come up regarding the Parks and Recreation Department.'" (*Id.* at 5:11-15.) Alvarez told Farro this made her uncomfortable and she declined to get involved. (*Id.* at 5:15-21.) Farro appeared "visually upset" following Alvarez's refusal. (*Id.* at 5:20-21.)

In July of 2019, Amanda Chaney ("Chaney"), a white woman, was hired as a Senior Activity Coordinator and Alvarez's subordinate. (FAC at 5:22-24.) Chaney's chain-of-command was Alvarez, then Farro. (*Ibid.*)

In the fall of 2019, Farro met with Alvarez to talk about the fact that Farro had heard Rodriguez was interested in creating a teen center, but Farro expressed that she thought "Teen Centers were outdated and the community didn't need one." (FAC at 6:5-9.) Farro asked for Alvarez's help in persuading Rodriguez not to pursue creating a teen center; Alvarez declined. (*Id.* at 6:9-10.)

Beginning in October of 2019, Farro started to exclude Alvarez from meetings where Chaney was invited, including meetings where the topics of discussion directly related to Alvarez's job duties. (FAC at 6:11-15.)

In December of 2019, Alvarez received a positive performance evaluation, it would be the last evaluation she would receive during her employment with the City of Brentwood. (FAC at 6:16-18.)

In February of 2020, Alvarez met with Farro to discuss her exclusion from the meetings and some chain-of-command issues she was having with Chaney. (FAC at 6:19-20.) Alvarez communicated to Farro that Chaney had a habit of bypassing Alvarez when expressing frustrations with job duties and going straight to Farro. (*Id.* at 6:20-24.) Farro dismissed Alvarez's concerns and did not offer any feedback or suggestions on how to resolve these challenges. (*Id.* at 6:24-25.)

In March of 2020, Alvarez had a meeting with Chaney to discuss her "behaviors" and to request that if Chaney had a problem, that Chaney address it first with Alvarez before reporting it to Farro so that Alvarez might be afforded an opportunity to resolve the issue first herself. (FAC at 6:27-7:2.)

Sometime between April and May of 2020, Farro approached Alvarez asking her to give Rodriguez Farro's personal phone number to coordinate a meeting between Farro and Rodriguez. (FAC at 7:7-11.) Alvarez agreed to do so, believing she was only the messenger. (*Id.* at 7:10-11.) Farro did not advise Alvarez of the nature of the meeting. (*Ibid.*)

In late May, Farro emailed Rodriguez requesting a meeting and she asked Alvarez to attend. (FAC at 7:12-15.) Farro told Alvarez she planned to persuade Rodriguez to install the planned teen center in a different building than initially planned with the goal of clearing the way for a senior center, which she deemed more important, to instead be housed in the location Rodriguez wanted for his teen center. (*Id.* at 7:15-20.) Alvarez declined to attend the meeting on the basis that she disagreed with

Farro's motive and felt Farro only wanted her to attend in the hopes that her presence would influence Rodriguez. (*Id.* at 7:20-22.) Farro again appeared "visibly upset" at being rebuffed. (*Ibid.*) Farro subsequently told Alvarez the meeting with Rodriguez went poorly and she asked Alvarez to speak to Rodriguez herself to "get him to change his mind." (*Id.* at 7:23-26.) Alvarez declined. (*Ibid.*)

In early June of 2020, Alvarez submitted Chaney's one-year evaluation to Farro. (FAC at 8:3-6.) Alvarez, in her evaluation, recommended placing Chaney on a performance improvement plan ("PIP"). (*Id.* at 8:6-7.) Farro refused to approve the PIP and demanded that Alvarez alter the evaluation before sending it on to Parks and Recreation Director Bruce Mulder, a white man. (*Id.* at 8:8-14.) Alvarez initially refused to alter her evaluation but ultimately relented. (*Id.* at 8:8-16)

On September 8, 2020, Alvarez became sick and began using accrued sick leave. (FAC at 8:27-28.) On September 24, 2020, she tested positive for COVID-19; she immediately reported this result to Farro and HR. (*Id.* at 9:11-12, 14-15.) HR advised her that she could not work from home while quarantining. (*Id.* at 9:15-16.)

Farro, who left for a vacation in late September, returned October 5, 2020, and was advised by Chaney and Recreation Supervisor Stacey Dempsey, a white woman, that Alvarez had been working while on FMLA leave. (*Id.* at 9:10, 9:18-23.)

Alvarez's complaint is unclear as to this point as it first states "In or between September 24, 2020, and October 19, 2020, ALVAREZ was on COVID-19 related FMLA leave and/or paid sick leave, quarantining at home." (*Id.* at 9:18-19.) One line later, the complaint reads as follows:

On or about October 5, 2020, Ms. Farro returned from vacation.
Upon Ms. Farro's return, Ms. Chaney and Recreation Supervisor Stacy
Dempsey (White/European American female) informed Ms. Farro
that ALVAREZ was working while on COVID-19 FMLA leave—even
though ALVAREZ was not on COVID-19 FMLA leave.

(FAC at 9:20-23 (emphasis added).)

On October 7, 2020, Farro disconnected Alvarez's access to the Brentwood network, ensuring Alvarez could not work from home. (FAC at 9:24-26.) On October 8, 2020, Farro sent Alvarez a text message advising her that she should not be working. (*Id.* at 10:1-3.) Alvarez replied that she was not working, merely "fielding calls in order to refer contacts back to either Ms. Farro or Ms. Chaney." (*Ibid.*) The same day, Alvarez contacted HR asking "how to distribute a time-sensitive, urgent email with instruction regarding ongoing programming" while she was out on leave; HR Officer Ashley Sosa, a white woman, referred her back to Farro. (*Id.* at 10:4-7.) When Alvarez contacted Farro on the matter, Farro told her she "felt like she should just hang up" since Alvarez was on leave. (*Id.* at 10:7-9.)

On October 9, 2020, Pat Wilkins, a volunteer for a Brentwood city event who was also a personal friend of Alvarez's, called Alvarez about issues related to the event. (FAC at 10:10-12.) Alvarez explained that she was on leave and referred the volunteer to Chaney; the two then spoke of other

topics unrelated to Alvarez's job. (*Id.* at 10:12-15.) Wilkins subsequently contacted Chaney telling her Alvarez had directed her to discuss the work-related topics with Chaney. (*Id.* at 10:16-18.)

Alvarez was still on leave on October 15, 2020, when she was contacted by Farro and Recreation Manager Denise Del Prado, a white woman, and informed that she was being written up for insubordination for working while on COVID-19-related FMLA leave and/or paid sick leave. (FAC at 10:18-21.) Farro told her that her phone call with Wilkins qualified as "working" in violation of City Policy. (*Id.* at 23:25.)

On October 19, 2020, Alvarez was cleared to return to in-office work. (FAC at 11:3.) One week later Chaney informed Alvarez that Alvarez was under investigation for working while on leave and that Farro directed Chaney to file a report against Alvarez. (*Id.* at 11:8-10.) Another employee, Diva Santiago, a Filipina woman, also informed Alvarez that Farro told her Alvarez was under investigation and that Santiago was not to speak with Alvarez. (*Id.* at 11:10-12.) Farro warned Santiago that if she spoke with Alvarez, Farro would subpoena Santiago's phone records to uncover any communications between her and Alvarez. (*Id.* at 11:12-15.)

When Alvarez asked Farro about the investigation, Farro directed her to HR. (FAC at 11:28-12:3.) Both HR Director Sukari Beshears, a Black woman, and the Bargaining Unit President disclaimed knowledge of any such investigation. (*Id.* at 11:15-17.) Farro sent an email to all employees asking for any emails, phone calls, and text messages that would prove Alvarez had been working while on leave. (FAC at 11:20-22.)

On December 7, 2020, Alvarez filed a formal complaint with HR against Farro for Farro's "discriminatory behaviors and actions." (FAC at 11:7-8.) After initiating the complaint, Farro refused to speak to Alvarez and Chaney became hostile and passive aggressive toward Alvarez. (*Id.* at 12:7-9.)

Over the four months that followed, Alvarez periodically asked HR Director Beshears for updates regarding her complaint and requested mediation to resolve the conflict; Alvarez found Beshears unresponsive. (FAC at 12:14-17.)

Alvarez's mother-in-law's health began to rapidly decline because of cancer in March of 2021, and Alvarez sought FMLA leave, providing HR with an FMLA request form and a doctor's note (1) identifying Alvarez as her mother-in-law's primary caregiver, and (2) stating that Alvarez needed time off under FMLA to care for her mother-in-law. (FAC at 12: 24-27.) HR denied the request, asserting that Alvarez would need to prove that her mother-in-law raised her since childhood to qualify for FMLA leave. (*Id.* at 12:27-13:1.)

In April of 2021, HR Director Beshears reported that Alvarez's December 7 complaint was found to be unsubstantiated; Alvarez again requested mediation to resolve the conflict. (FAC at 13:2-5.) In May of 2021, HR provided a mediator to "improve open communication, trust, and team building." (*Id.* at 13:6-9.) Farro objected to working with the mediator and the mediator's contract was terminated within a month. (*Id.* at 13:10-14.)

On July 4, Alvarez asked Director Mulder and HR Director Beshears to assign her a new supervisor; her

request was denied. (*Id.* at 14:13-15.) Alvarez filed a second HR complaint on July 21, 2021, alleging continued discriminatory and retaliatory actions from Farro and she further alleged that HR had failed to rectify or improve the situation. (FAC 15:5-9.) She again requested to switch managers due to a hostile work environment. (*Ibid.*)

On December 7, 2021, after a City event wherein Alvarez made the decision to seek the help of part-time staff for tasks related to the event, Chaney became angry upon hearing of Alvarez's delegation. (FAC at 15:27-16:2.) Chaney began shouting at Alvarez because she said Alvarez "had no right to give her work away." (*Id.* at 16:2-5.) Alvarez reported the incident to Director Mulder and "further complained that Ms. Chaney's behavior in the department makes ALVAREZ's job twice as difficult as co-workers refused to work with Ms. Chaney." (*Id.* at 16:8-10.) Alvarez alleges that Director Mulder did not investigate these claims. (*Ibid.*)

In January of 2022, Alvarez went to HR about her issues with Chaney's "poor attitude, lack of respect, and lack of professionalism toward Alvarez." (FAC at 13-15.) HR Director Beshears did not follow up. (*Ibid.*) That same month Alvarez was supposed to conduct a six-month evaluation of Chaney; Farro, after seeing Alvarez had included a PIP, required Alvarez to change the evaluation. (*Id.* at 16:17-21.) When she refused to change the evaluation, Farro requested that Director Mulder remove Chaney from Alvarez's supervision as Chaney had asked to be moved "due to the unhealthy work relationship with ALVAREZ." (*Id.* at 16:21-24.)

In February 2022, Alvarez was assigned Thomas Freedman, a white man, to take the place of Chaney as her subordinate coordinator. (FAC at 17:1-3.) Alvarez objected to the assignment because Freedman had no experience in Parks and Recreation, Senior Adult Programming and had previously been the Sports Program Coordinator. (*Id.* at 17: 1.4.) Her concerns were ignored by Director Mulder. (*Id.* at 17:4.)

Between May and July of 2022, Alvarez "received dozens of complaints" from other staff, collaborating agencies, facilities renters, and senior participants, claiming that they believed Freedman was "sabotaging ALVAREZ's work with the Senior Center." (FAC at 17:13-16.) Alvarez brought these complaints to the attention of Farro and Director Mulder requesting that they transfer Freedman and place him on a PIP, both of which were denied. (*Id.* at 17:16-18.) As a result, tension between Alvarez and Freedman increased and ultimately "resulted in Mr. Freedman verbally assaulting ALVAREZ." (*Id.* at 17:18-20.) He was never held accountable for his conduct. (*Ibid.*)

In July of 2022, after Alvarez informed Director Mulder that a local café that collaborated with the City's Senior Center was terminating its relationship with the Senior Center because of Freedman's conduct, Alvarez again asked that Freedman be transferred; this time Director Mulder agreed. (FAC at 17:21-23.) In transferring Freedman, however, Director Mulder failed to replace him for six months, significantly increasing Alvarez's workload. (*Id.* at 17:24-26.)

Later that month, HR Director Beshears informed Alvarez that she was under investigation, though she did not elaborate on the basis for the investigation. (FAC at 18:2-5.) Farro resigned from her

position in mid-July of 2022. (*Id.* at 17:27-28, 18:1.)

In August of 2022, Alvarez attended an investigative interview, wherein she learned that Chaney had filed a complaint against her alleging 29 counts of retaliation. (*Id.* at 18:6-8.) At the interview Chaney was allowed to present witnesses while Alvarez was not allowed to present witnesses or refute any of Chaney's claims. (*Id.* at 18:9-11.)

From September of 2022 to November of 2022, Alvarez suffered from stress and anxiety stemming from Defendant's "discrimination, harassment, retaliation, and the overall hostile work environment." (FAC at 18:12-14.)

On December 7, 2022, Alvarez was placed on administrative leave on the basis that "'the City was in the process of evaluating issues relating to [her] performance' and 'that this action [was] not disciplinary.'" (FAC at 18:18-20.)

Alvarez received a notice of intent of discipline for termination from Director Mulder on January 28, 2023. (FAC at 18:27-28.) After a March 9, 2023, *Skelly* hearing, Brentwood moved ahead with Alvarez's termination on April 28, 2023. (*Id.* at 19:11-14.)

Alvarez filed a complaint with the California Civil Rights Department ("CRD") on April 28, 2025, and she was issued a notice of case closure and a right-to-sue letter the same day. (FAC at 20:21-24.) She filed suit in this case on April 28, 2025.

Meet-and-Confer Efforts

Pursuant to California Code of Civil Procedure § 430.41, parties shall meet and confer at least five days before the date the responsive pleading is due, and if they are not able to do so, the demurring party shall be granted an automatic 30-day extension to file a responsive pleading. (Code Civ. Proc., § 430.41.) The defendant must answer an amended complaint within 30 days after service. (Code Civ. Proc., § 471.5.)

Here, Defendant's counsel's efforts to meet and confer before filing this demurrer were insufficient. Counsel failed to engage in such efforts "in person, by telephone, or by video conference." (Code Civ. Proc., §430.41(a).)

Plaintiff filed her First Amended Complaint on August 1, 2025. Defendant's counsel sent a meet-and-confer letter to Plaintiff's Counsel on August 27, 2025. With the Labor Day holiday, Defendant's responsive pleading was due September 2, 2025. On August 29, Defendant's counsel filed a declaration with the court stating that meet-and-confer efforts had failed after just two days, entitling Defendant an automatic 30-day extension. California Code of Civil Procedure section 430.41 requires that a "good faith attempt to meet and confer was made."

Failure to meet and confer in compliance with the statute, however, is not a permissible basis for either sustaining or overruling a demurrer. Given the improbability that meeting and conferring in the correct format would change the results here, the Court proceeds with its ruling.

Legal Standard

Demurrer

“A demurrer tests the sufficiency of the complaint by raising questions of law.” (*Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203.)

The complaint must be “liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc. § 452.) “[I]f it appears that the plaintiff is entitled to any relief against the defendant, the complaint will be held good, even though the facts may not be clearly stated.” (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 896.)

Statute of Limitations

Before seeking judicial relief, an employee must exhaust FEHA’s administrative remedy by filing an administrative complaint with the California Civil Rights Department (“CRD”) within three years of the unlawful conduct identified under FEHA and obtaining a “right-to-sue” letter from the agency. (Gov. Code, § 12960(e)(5); *Martin v. Lockheed Missiles & Space Co.* (1994) 29 Cal.App.4th 1718, 1724; *Yurick v. Superior Court* (1989) 209 Cal.App.3d 1116, 1120-1121; *Rojo v. Kliger* (1990) 52 Cal.3d 65, 83.) Once the CRD issues a right-to-sue letter, a complainant has one year to file a civil suit. (Gov. Code, § 12965(b).)

Here, Alvarez filed a CRD complaint and the agency issued her a right-to-sue letter on April 28, 2025 (FAC at 20:21-24.) She initiated this lawsuit the same day. (*Ibid.*) Accordingly, the conduct occurring before April 28, 2022, falls outside the limitations period.

The alleged adverse employment actions that landed within the statutory period include: (1) Defendant initiated a formal investigation into Plaintiff (July of 2022), (2) Defendant placed Plaintiff on administrative leave (December 7, 2022), and (3) Defendant terminated Plaintiff (April 28, 2023). Other alleged events during this period (e.g. a “verbal assault,” staffing support issues, or investigative procedures) are not, standing alone, discrete adverse employment actions for the purposes of the statute of limitations analysis.

To the extent that Plaintiff relies on conduct occurring before April 28, 2022, such as earlier staffing decisions, performance-related disputes, and the handling of internal complaints, those acts fall outside the limitations period and cannot independently support liability.

Plaintiff, however, alleges a hostile work environment and invokes a continuing violation theory. A continuing violation is an equitable exception to the three-year period of limitation under FEHA. An employer’s discriminatory conduct qualifies as a continuing violation if its actions are (1) sufficiently similar in kind (like or related) to conduct that occurred within the violations period, (2) have occurred

with reasonable frequency, and (3) have not acquired a degree of permanence. (*Richards v. CH2M Hill, Inc.* (2001) 26 Cal.4th 798, 823; *Jumaane v. City of Los Angeles* (2015) 241 Cal.App.4th 1390, 1402.) “Permanence” is defined as when an employer’s statements and actions make it clear to a reasonable employee that future efforts at informal conciliation will be futile. (*Ibid.*)

The continuing violation doctrine applies primarily to ongoing harassment or a persistent hostile work environment, however, not discrete personnel management actions, which are different in kind. (*AMTRAK v. Morgan* (2002) 536 U.S. 101, 115 (overruled by statute on other grounds).) Time-barred discriminatory acts are not actionable, even when they relate to acts alleged in timely filed charges. (*Id.* at 113.)

Hostile environment claims ... by their very nature involve repeated conduct. ... The “unlawful employment practice” therefore cannot be said to occur on any particular day. It occurs over a series of days or perhaps years and, in direct contrast to discrete acts, a single act of harassment may not be actionable on its own.

(*AMTRAK, supra*, 536 U.S. at 115.)

Common personnel management actions include “hiring and firing, job or project assignments, office or work station assignments, promotion or demotion, performance evaluations, the provision of support, the assignment or nonassignment of supervisory functions, deciding who will and who will not attend meetings, deciding who will be laid off, and the like...” (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 64-65.)

The First Amended Complaint’s pre-2022 allegations concern personnel management actions – including investigations, discipline, staffing decisions, and performance-related disputes – which courts classify as discrete employment decisions rather than ongoing harassment. Accordingly, Plaintiff fails to demonstrate a continuing violation.

I. Race Discrimination and Age Discrimination – Disparate Impact

California’s Fair Employment and Housing Act (“FEHA”) holds that it is an unlawful employment practice to bar or discharge a person from employment or discriminate against the person in compensation or in terms, conditions, or privileges of employment, based on race or age. (Gov. Code, § 12940(a), Gov. Code § 12926(b); § 12926(o).)

Under FEHA, “age” is the chronological age of a person who has reached a 40th birthday. (Gov. Code § 12926(b).) FEHA defines “employer” as “any person regularly employing five or more persons, or any person acting as an agent of an employer, directly or indirectly...” (Cal Gov Code § 12926(d).)

In her complaint, a plaintiff must plead the essential facts of the case with particularity sufficient to acquaint a defendant with the nature, source and extent of the FEHA cause of action. (*Alch v. Superior Court* (2004) 122 Cal.App.4th 339, 382.)

“Because of the similarity between state and federal employment discrimination laws, California

courts look to pertinent federal precedent when applying our own statutes.” (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 354.)

To establish a disparate impact claim under FEHA a plaintiff must establish that the defendant’s facially neutral employment policy or practice causes a disproportionate adverse impact on members of a protected class, not merely on the plaintiff individually. (See *Guz v. Bechtel Nat’l, Inc.* (2000) 24 Cal.4th 317, 354; *Villafana v. County of San Diego* (2020) 57 Cal.App.5th 1012, 1017.) “[T]he mere fact that each person affected by a practice or policy is also a member of a protected group does not establish a disparate impact.” (*Villafana, supra*, 57 Cal.App.5th at 1017.)

[A] plaintiff must allege and prove, usually through statistical disparities, that facially neutral employment practices adopted without a deliberately discriminatory motive nevertheless have such significant adverse effects on protected groups that they are in operation ... functionally equivalent to intentional discrimination.

(*Carroll v. City and County of San Francisco* (2025) 115 Cal.App.5th 1192, 1213 (nested quotations omitted).)

A disparate impact claim does not challenge isolated employment decisions, but rather specific employment policy or practice that allegedly produces a group-based disparity. (*Darensburg v. Metro. Transp. Comm’n* (9th Cir. 2011) 636 F.3d 511, 519.) The appropriate comparison is between groups to whom the facially neutral policy has been or can be applied. (*Villafana, supra*, 57 Cal.App.5th at 1018.)

Here, Alvarez’s amended complaint does not identify any specific facially neutral employment practice or policy (before or after April 28, 2022) that allegedly produced a disparate impact on members of either of her protected classes (Hispanic/Latin American or Age). Although her complaint alleges investigations, staffing decisions, and disciplinary actions, these are described as individualized personnel decisions rather than an identified employment policy. A disparate impact claim requires identification of a particular employment practice or policy, and, here, none is identified. (*Darensburg v. Metro. Transp. Comm’n* (9th Cir. 2011) 636 F.3d 511, 519; *Villafana, supra*, 57 Cal.App.5th at 1018.)

The amended complaint also fails to allege facts showing a group-based disparity, the allegations focus exclusively on Alvarez’s own treatment by Defendant and do not allege how the challenged practices impacted other Hispanic/Latin American or older employees. A disparate impact claim requires allegations of disproportionate adverse effect on the protected group as a whole, not merely on the plaintiff individually. (*Guz v. Bechtel Nat’l, Inc., supra*, 24 Cal.4th at 354; *Villafana, supra*, 57 Cal.App.5th at 1017.)

Alvarez in her complaint also does not allege statistical disparities, comparator facts, or other factual allegations from which group-level disproportionate impact could be inferred. (*Carroll, supra*, 115 Cal.App.5th at 1213.) The absence of such allegations is fatal to a disparate impact claim. (*Villafana, supra*, 57 Cal.App.5th at 1018; *Carroll, supra*, 115 Cal.App.5th at 1213.)

Instead, Alvarez alleges that Brentwood's actions adversely affected Alvarez personally. Such allegations potentially describe disparate treatment, but not disparate impact. (*Guz v. Bechtel Nat'l, Inc.*, *supra*, 24 Cal.4th at 354; *Villafana*, *supra*, 57 Cal.App.5th at 1018.)

Accordingly, Plaintiff's First Amended Complaint fails to state a claim for her first cause of action for race discrimination under a disparate impact theory or her third cause of action for age discrimination under a disparate impact theory; the demurrer is sustained as to both causes of action with leave to amend.

II. Age Discrimination (Disparate Treatment)

To establish a claim for discrimination, a plaintiff must show "that (1) [the plaintiff] was a member of a protected class, (2) [the plaintiff] was qualified for the position [they] sought or was performing competently in the position [they] held, (3) [the plaintiff] suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive." (*Guz*, *supra*, 24 Cal.4th at 355.)

Alvarez alleged in her First Amended Complaint that she was 50 years old at the time of her termination. (FAC at 25:15-16.) Alvarez alleged she received positive performance evaluation from 2000 when she was hired up until 2019. (FAC at 4:22-28.) The relevant adverse employment actions were as follows: (1) the City initiated a formal investigation into Alvarez (July of 2022), (2) the City placed Alvarez on administrative leave (December 7, 2022), and (3) the City terminated Alvarez's employment (April 28, 2023). (FAC at 18:2-5, 18:18-20, 19:11-14.)

Plaintiff's complaint, however, does not allege nonconclusory facts supporting an inference that the adverse actions were motivated by her age. She does not allege age-related remarks, age-based stereotypes, replacement by a substantially younger employee, or facts showing that similarly situated younger employees were treated more favorably. Instead, the allegations concern investigations, workplace disputes, and personnel decisions without any factual connection to age. Conclusory assertions that actions were taken "because of age" without supporting facts, are insufficient at the pleading stage.

Accordingly, the demurrer to Plaintiff's fourth cause of action for age discrimination disparate treatment is sustained with leave to amend.

III. Hostile Work Environment Harassment

It is a violation of FEHA for an employer to engage in or permit harassment of an employee in the workplace. (Govt. Code § 12940(j)(1).)

California Jury Instructions No. 2521a describes the essential factual elements that a plaintiff must allege to state a claim for harassment: (1) that Plaintiff was an employee of Defendant's; (2) that she was subjected to unwanted harassing conduct because of protected characteristic or combination of characteristics; (3) that the harassing conduct was severe or pervasive; (4) that a reasonable person in Plaintiff's circumstances would have considered the work environment to be hostile or abusive; (5)

that Plaintiff considered the work environment to be hostile or abusive; (6) that a supervisor engaged in the conduct, or that Defendant's supervisors or agents knew or should have known of the conduct, and failed to take immediate and appropriate corrective action; (7) that Plaintiff was harmed; and (8) that the conduct was a substantial factor in causing Plaintiff's harm.

Discrimination and harassment are in separate categories under FEHA; "discrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace." (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 707.) Harassment consists of conduct outside the scope of necessary job performance; commonly necessary personnel management actions do not come within the meaning of harassment. (*Ibid.*) Harassment is conduct unnecessary for management of the employer's business or performance of the supervisory employee's job and typically involves bias-motivated hostility, ridicule, or insult. (*Janken, supra*, 46 Cal.App.4th at 63.)

Here, even assuming *arguendo* that the pre-April 28, 2022, challenged conduct is considered a continuing violation, Plaintiff's First Amended Complaint alleges investigations, disciplinary scrutiny, staffing disputes, administrative leave, and termination. These are personnel management actions, which, as a matter of law, do not constitute harassment under FEHA, even if allegedly unfair or motivated by animus. (*Roby, supra*, 47 Cal.4th at 707; *Janken, supra*, 46 Cal.App.4th at 63.) Alvarez's amended complaint does not allege conduct involving bias-motivated hostility, ridicule, or insult tied to her protected statuses.

Accordingly, Plaintiff fails to state a claim for hostile work environment harassment and the demurrer to her fifth cause of action is sustained with leave to amend.

IV. Retaliation

FEHA prohibits an employer from discharging or otherwise discriminating against any employee because the employee opposed any practices forbidden under FEHA or because the person filed a complaint, testified, or assisted in any proceeding under FEHA. (Gov. Code § 12940(h)). An employee's conduct also constitutes protected activity for purposes of the anti-retaliation provision of FEHA when the employee opposes conduct that the employee reasonably believes to be discriminatory. (Gov. Code. § 12940(h); *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1043.)

To state a claim for retaliation under FEHA, a plaintiff must allege (1) she engaged in protected activity, (2) she was subjected to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. (*Yanowitz, supra*, 36 Cal.4th at 1042.)

The determination as to what constitutes a protected activity is inherently fact driven. (*Rope v. Auto-Chlor System of Washington, Inc.* (2013) 220 Cal.App.4th 635, 652 (superseded by statute on other grounds).) The causal link may be established by an inference derived from circumstantial evidence. (*Morgan v. Regents of University of California* (2000) 88 Cal.App.4th 52, 69.)

Evidence that the employer was aware that the plaintiff had engaged in the protected activity and that the adverse employment action followed within a relatively short time thereafter will support an

inference that the action was retaliatory and is central to finding a causal link. (*Morgan, supra*, 88 Cal.App.4th at 69-70; *Rope, supra*, 220 Cal.App.4th at 653.)

In the retaliation context, an adverse employment action is one “that materially affects the terms, conditions, or privileges of employment.” (*Yanowitz, supra*, 36 Cal.4th at 1051.)

Here, among the retaliatory adverse employment actions within the limitation period are: (1) Defendant failing to hold Freedman accountable for “verbally assault[ing]” Alvarez (July 2022), (2) Defendant increasing Alvarez’s workload by failing to replace her subordinate for six months after transferring Freedman (July 2022), (3) Defendant initiating an investigation into Alvarez (July 2022), (3) at Defendant’s investigative interview, allowing Chaney to present witnesses while not allowing Alvarez to present witnesses or refute any of Chaney’s claims, , (4) Defendant placing Alvarez on administrative leave (December 7, 2022) and (5) Defendant terminating Alvarez (April 28, 2023).

Plaintiff alleges she filed two formal complaints with HR alleging discriminatory and retaliatory treatment as well as differential treatment tied to protected characteristics. (FAC at 11:7-8, 15:5-9.) Plaintiff’s two formal complaints were filed outside the limitations period because they occurred before April 28, 2022, however, although they are time-barred as independent bases for liability, these complaints may be considered as background evidence in support of her timely retaliation claim. (*AMTRAK, supra*, 536 U.S. at 113; *United Air Lines v. Evans* (1977) 431 U.S. 553, 558.)

Accordingly, the complaint sufficiently alleges that Plaintiff engaged in protected activity under FEHA, which includes opposing conduct reasonably believed to violate FEHA or filing internal complaints regarding discrimination or harassment. (Gov. Code § 12940(h); *Yanowitz, supra*, 36 Cal.4th at 1042-1044.)

The complaint also sufficiently alleges adverse employment actions that materially affected the terms, conditions, or privileges of her employment or were reasonably likely to deter protected activity. (*Yanowitz, supra*, 36 Cal.4th at 1051, 1054.) These allegations adequately plead adverse actions.

Finally, the First Amended Complaint alleges facts sufficient to support an inference of causal connection. Causation may be shown circumstantially, including by temporal proximity or by a pattern of antagonism following protected activity. (*Yanowitz, supra*, 36 Cal.4th at 1046; *Morgan, supra*, 88 Cal.App.4th at 69.)

Immediately after Alvarez filed a formal complaint against Farro in December of 2020, Farro refused to speak to Alvarez and Chaney became hostile and passive aggressive toward Alvarez. (FAC at 11:7-8, 12:7-9.)

When Alvarez filed her second HR complaint alleging continued discriminatory and retaliatory actions from Farro and requested to switch managers for the second time, due to a hostile work environment, she was denied. (FAC at 15:5-9.) She faced insubordination from subordinates that Defendant failed to investigate. (FAC at 16:8-10, 13-15, 17:1-4, 13-20.) She faced removal of support staff for six months that significantly increased her workload. (FAC 17:21-16.) She was subject to

investigation, increased scrutiny, and ultimately administrative leave and termination. FAC at 15:5-9, 18:2-5.)

The complaint alleges that following Alvarez's complaints she faced a pattern of antagonism – scrutiny intensified, an investigation was initiated, she was placed on administrative leave, and her employment was terminated. At the demurrer stage, the Court does not weight competing inferences, and these allegations are sufficient to plead causation.

Accordingly, Plaintiff has stated a claim for retaliation under Government Code section 12940(h), and the demurrer to her sixth cause of action is overruled.

V. Failure to Prevent Retaliation/Failure to Prevent Discrimination

FEHA prohibits an employer from failing to "take all reasonable steps necessary to prevent discrimination and harassment from occurring." (Gov. Code, § 12940(k). "Prompt investigation of a discrimination claim is a necessary step by which an employer meets its obligation to ensure a discrimination-free work environment." (*Northrop Grumman Corp. v. Workers' Comp. Appeals Bd.* (2002) 103 Cal.App.4th 1021, 1035.)

FEHA claims for failure to prevent retaliation and failure to prevent discrimination are derivative; if the employee has not established discrimination, harassment, or retaliation, the failure-to-prevent claim necessarily fails. (*Carter v. California Dept. of Veterans Affairs* (2006) 38 Cal.4th 914, 925, fn. 4; *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 289; *Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1309.)

Here, while the Court finds that Plaintiff did not sufficiently state claims for her third and fourth causes of action for age discrimination (disparate treatment/disparate impact) or her fifth cause of action for hostile work environment harassment, Defendant does not demur to Plaintiff's second cause of action for race discrimination (disparate treatment) or her seventh cause of action for retaliation for exercising rights under CFRA, and the Court finds Plaintiff has sufficiently stated a claim for FEHA retaliation. Because viable underlying FEHA theories remain, Plaintiff's derivative claim for failure to prevent discrimination and retaliation may proceed. (*Carter, supra*, 38 Cal.4th at 925, fn. 4.)

Accordingly, Plaintiff has sufficiently stated a claim for failure-to-prevent retaliation under Government Code section 12940(k), and the demurrer to her eighth cause of action is overruled.

Conclusion

For the foregoing reasons, Defendant's demurrer as to Plaintiff's first, third, fourth, and fifth causes of action is sustained with leave to amend, and Defendant's demurrer to Plaintiff's sixth and eighth causes of action is overruled.

14. 9:00 AM CASE NUMBER: MSC20-00056

CASE NAME: GULINGAN VS SU

***HEARING ON MOTION IN RE: STRIKE PLTFS MEMO OF COSTS FILED 09/11/25 AS PREMATURE
FILED BY: SU, YING ZHONG**

TENTATIVE RULING:

Pursuant to the Notice of Withdrawal filed January 28, 2026, defendants' motion to strike is DROPPED from calendar and the hearing date VACATED.

15. 9:00 AM CASE NUMBER: MSC20-00056

CASE NAME: GULINGAN VS SU

***HEARING ON MOTION IN RE: STRIKE PLTFS MEMO OF COSTS FILED 09/16/25 AS PREMATURE
FILED BY: SU, YING ZHONG**

TENTATIVE RULING:

Pursuant to the Notice of Withdrawal filed January 28, 2026, defendants' motion to strike is DROPPED from calendar and the hearing date VACATED.

16. 9:00 AM CASE NUMBER: MSC21-02266

CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.

**HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT OF HACIENDA HOMES, INC.
FILED BY:**

***TENTATIVE RULING**

EBMUD's demurrer to Hacienda Homes, Inc.'s First Amended Cross-Complaint is sustained with leave to amend.

The operative cross-complaint fails to state facts sufficient to constitute a viable cause of action against EBMUD.

Because Hacienda has requested leave to amend, leave is granted to permit Hacienda to attempt to plead a timely and otherwise cognizable cause of action against EBMUD, if it can do so.

EBMUD shall prepare the order and serve and file notice of its entry.

Hacienda shall file and serve any amended cross-complaint within 20 days after service of notice of entry of order.